

ucla undocumented immigrant students speak out

under**ground**under**grads**

Edited by Gabriela Madera, Angelo A. Mathay, Armin M. Najafi, Hector H. Saldívar, Stephanie Solis, Alyssa Jane M. Titong, Gaspar Rivera-Salgado, Janna Shadduck-Hernández, Kent Wong, Rebecca Frazier, and Julie Monroe

UCLA Center for Labor Research and Education
Los Angeles, California

preface

Angelo A. Mathay

Generations after the civil rights movement, a new movement that follows a similar path is burgeoning in the United States. Students are at the head of this movement, which centers on immigrant rights, organizing, and mobilizing on a scale that the United States has not seen for decades. Because of its multicultural nature, Los Angeles is at the forefront of this movement. Student organizations in the Los Angeles area have banded together to influence the debate raging in Congress. What is surprising about this student-led movement is that a majority of these activists are undocumented. As undocumented residents, they face significant burdens and stigmas every day; yet they understand that the fight for their education is a necessity.

Although undocumented students are a major presence throughout the United States, the undocumented student movement is strongest in Southern California. With the passage of Assembly Bill 540 (authored by the late Marco Firebaugh) in 2001, these students have been given the opportunity to attend universities all over California. Nevertheless, most still have difficulty financing their education because they are unable to receive state or federal financial aid. They face the harsh reality of interrupting their educational careers to save money for tuition by working low-wage jobs despite the uncertainty of employment after receiving their college degrees. Many undergo tremendous emotional stress produced by the fear of deportation.

Undocumented students have been at the forefront of organizing for the passage of

state and federal Dream Acts as well as lobbying for comprehensive immigration reform across the country. The issue of undocumented immigrants has become a transnational issue, with corporations and international institutions pushing for extensive immigration reform. Protecting undocumented immigrants from corporate exploitation has been difficult owing to the broken system of U.S. immigration laws but as the need for reform has become more apparent, more individuals are beginning to organize and take action.

The students who contributed to this publication are among those who are most committed to the immigrant rights movement. Many of these students participated in the Immigrant Rights, Labor, and Higher Education course at UCLA, taught by Kent Wong and Janna Shadduck-Hernández during the 2006–07 school year. During the first quarter of the class, students learned how to be ethnographers, and they transcribed accounts of their families' immigration histories. Through exercises, lectures, and discussions—and the remarks of inspiring guest speakers, such as Josh Bernstein from the National Immigration Law Center, Victor Narro from the UCLA Labor Center, and Michael Garcés from the Cornerstone Theater Company—students from the class were exposed to the many facets of the immigration debate.

For the second quarter of the course, the students separated into groups that focused on goals for this publication and a conference later in the quarter. The research and legislative group worked on

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outlining all the court cases and legislation that have played a role in the present state of U.S. immigration policy. The conference group worked on organizing a conference at UCLA that would present the stories of a select group of undocumented students and provide informational workshops on current legislation, strategies for organizing, and financing one's education while undocumented. The editing, layout, and design group worked on selecting and editing the family histories and interviews from the previous quarter for inclusion in this publication.

Each of the testimonials, interviews, and family histories that are collected in this volume was drawn from individuals who participated in the class and from other inspirational individuals class members worked with. These stories reflect the struggles of undocumented students throughout California and the nation. They focus on a wide array of experiences, from an eleven-year-old boy running away from home and joining revolutionaries in El Salvador, to a young woman testifying in front of the U.S. Congress and sharing her story as an undocumented student. These experiences gave class members a personal perspective on the contemporary immigration debate. They broadened their roles as student activists, participating in various immigrant rights events, such as May Day marches, radio shows, conferences, and symposiums.

Since the students completed the courses, some progress has been made in moving toward a resolution for undocumented

students. As a result of persistent efforts from the students and their allies, a coalition of networks has been developed to place pressure on our representatives to support legislation that will help undocumented students pursue their educational goals. These bills include the California Dream Act at the state level and the DREAM Act at the federal level.

With Professor Kent Wong's and Professor Janna Shadduck-Hernández's encouragement, class members have promoted awareness about undocumented students in communities throughout the state of California. The immigration hearing and conference that was organized by this class and held at UCLA on May 19, 2007, was attended by key members of the California state legislature, including Senators Gilbert Cedillo and Gloria Romero, and Assemblymembers Anthony Portantino, Mike Eng, and Kevin De León. The ongoing debate in the U.S. Congress has galvanized many of these students to fight for immigrant rights and educate those who have been misinformed about the issue.

By educating and reaching out to citizens and political leaders who are unaware of the issue of undocumented college students, we believe that we will put comprehensive immigration reform and the Dream Act at the forefront of the discussion in Congress. As student activists, we are building on the tradition of the civil rights movement and promoting the passage of legislation that will enable millions of undocumented students to not only dream but also start living a life without borders.

Assembly Bill 540

AB 540 History

Assembly Bill 540 (AB 540), authored by the late Marco A. Firebaugh, makes higher education more accessible for undocumented students. The bill was passed by the California State Senate and State Assembly in September 2001.¹ AB 540 became law when Governor Gray Davis signed the bill on October 11, 2001.² In January 2002, the law took effect in the California Community College and California State University systems. Soon after, the University of California Board of Regents voted to adopt AB 540.³



Former Assemblymember Marco Antonio Firebaugh. Courtesy of former Assemblymember Firebaugh's office.

What Is AB 540?

AB 540 is a California law that allows out-of-state students and undocumented students who meet certain requirements to be exempt from paying nonresident tuition at all public colleges and universities in California.⁴

What Are the Requirements?

In order for a student to be eligible for AB 540, he or she must fulfill the following requirements:

1. The student must have attended a California high school for three or more years.
2. The student must have graduated from a California high school or attained an equivalent degree (e.g., a General Education Diploma, or GED).
3. The student must be currently enrolled or registered as an entering student at an accredited institution of higher education in California.⁵

Affidavit Process for Undocumented Students Only

Once all these requirements have been fulfilled, an undocumented student must fill out an affidavit with the institute of higher education that states that he or she

has filed an application to regularize his or her immigration status, or will file an application as soon as he or she is eligible to do so.⁶

All Information Given by a Student Remains Confidential

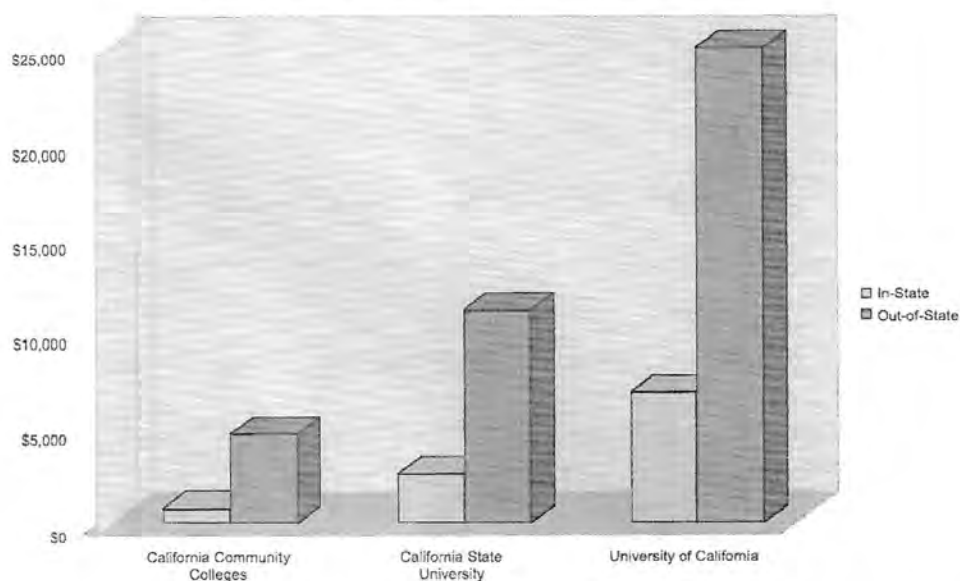
Undocumented students do not need to worry that any information they give pertaining to their immigration status will be used against them in any way. Any information given by a student is protected under the Family Education Rights and Privacy Act (FERPA). A federal law passed in 1974, FERPA protects the privacy of a student's education records.⁷ In other words, the U.S. Immigration and Customs Enforcement (ICE) cannot access a student's education records.

Why Is AB 540 Necessary?

The California state legislature made its decision to adopt AB 540 and exempt undocumented students from paying nonresident tuition for three main reasons:

1. The legislature found that many undocumented high school students had attended elementary and secondary schools in the state of California and were likely to remain in the state but were precluded from obtaining an affordable college education because they were required to pay nonresident tuition (see table 1).
2. The legislature agreed that it was unjust to deny these students higher education, since they had already proven their academic eligibility and merit by being accepted into California's colleges and universities.

In-State versus Out-of-State Tuition



In-state tuition is significantly lower at each level of higher education in California. AB 540 allows undocumented students to pay in-state fees of approximately \$780 a year, versus \$4,620 for out-of-state fees, at California Community Colleges; \$2,552 versus \$11,010 at California State University campuses; and \$6,780 versus \$24,900 at University of California campuses.

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3. Finally they concluded that a fair tuition policy for all high school pupils in California ensures access to California's colleges and universities and thereby increases the state's collective productivity and economic growth.⁸

How Do Students Apply for AB 540?

Once a student is accepted into a California college or university, he or she should immediately apply for AB 540 status. A student can begin the process either by picking up a California Nonresident Tuition Exemption Request or the University of California Nonresident Tuition Exemption Application and Affidavit at the registrar's office on campus or by downloading the appropriate form from the school's web site.

Limitations of AB 540

1. AB 540 does not give undocumented students access to state or federal financial aid.
2. AB 540 does not provide a venue to undocumented students for adjusting their immigration status.

Other States with Similar Legislation⁹

Several states have passed laws or are considering laws that are similar to AB 540.¹⁰

1. *Texas*. In 2001 Texas became the first state to allow undocumented students to pay in-state tuition. Texas is also the only state in which undocumented students are eligible to receive state financial aid.
2. *Utah and New York*. In 2002 both states enacted legislation that allows undocumented students to pay in-state tuition.
3. *Washington, Oklahoma, and Illinois*. In 2003 and 2004 these three states passed legislation that allows undocumented students to pay in-state tuition.
4. *Kansas*. In 2004 Kansas passed legislation that allowed undocumented students to pay in-state tuition.¹¹
5. *New Mexico*. New Mexico does not have a state law that allows undocumented students to pay in-state tuition, but some institutions have been granting in-state tuition as well as providing some tuition exemptions for undocumented students.
6. *Nebraska*. Nebraska became the tenth state to pass legislation that provides a path for undocumented students to pay in-state tuition for higher education.
7. *Other States*. Similar legislation is pending in Colorado, Connecticut, Florida, Hawaii, Massachusetts, Minnesota, New Hampshire, New Jersey, North Carolina, South Carolina, Oregon, Tennessee, and Virginia.¹²

The Federal Dream Act

History of the Dream Act

The Dream Act was first introduced in 2001 during the 107th Congress.¹ The original Dream Act failed to garner enough support to come to the floor for a vote. Despite its initial failure, various forms of the Dream Act have been reintroduced in the Senate and the House of Representatives, either as separate bills or as part of larger, comprehensive immigration bills (see Table 2). The Senate version is called the Development, Relief, and Education for Alien Minors Act, more commonly referred to as the DREAM Act. The House version is formally called the American Dream Act. Since their introduction in 2001, these versions of the Dream Act have had forty-eight cosponsors in the Senate and more than one hundred fifty-two cosponsors in the House.² Despite their popularity and bipartisan support, the bills have been prevented from coming to the floor for a vote in either house by a minority that opposes the bills.³ The most recent attempt to pass the Dream Act failed in October 2007.

Bills with Dream Act Provisions in the 110th Congress*

Senate	House
S 774 Development, Relief, and Education for Alien Minors (DREAM) Act	HR 1221 Education Access for Rightful Noncitizens (EARN) Act
S 1639 Unaccompanied Alien Child Protection Act	HR 1275 American Dream Act
S 1348 Comprehensive Immigration Reform Act	HR 1645 Security Through Regularized Immigration and a Vibrant Economy (STRIVE) Act

*Proposals will include language that would:

1. Amend the IIRIRA to permit states to determine state residency for higher education purposes.
2. Authorize the cancellation or removal and adjustment of status of certain unauthorized students who are long-term U.S. residents and entered the United States as children.

Dawn Konet, "Unauthorized Youths and Higher Education: The Ongoing Debate," September 2007. Available at the Migration Policy Institute web site, <http://www.migrationinformation.org/feature/display.cfm?ID=642>.

What Is the Federal Dream Act?

The Dream Act is legislation that will provide a path to legalization for certain undocumented students who were brought to the United States as children, completed their primary and secondary education in the United States, and fulfilled other requirements pertaining to education and contributing to the country.⁴ The Dream Act will help these students by:

1. *Amending the Illegal Immigration Reform and Immigrant Responsibility Act (IIRIRA).* Section 505 of IIRIRA, which was enacted in 1996, prohibits states from giving undocumented students higher education benefits without making those same benefits available to U.S. citizens and legal permanent residents.⁵ Repealing Section 505 of IIRIRA would permit states to determine the qualifications for state residency for the purposes of higher education benefits.
2. *Offering Conditional Permanent Resident Status.* Conditional permanent resident status is similar to lawful permanent resident status. The only difference is that it is valid for only six years. Undocumented students who have been given conditional permanent resident status would be able to work, drive, go to school, and participate in a number of other activities from which they are currently barred because of their undocumented status. They would also be eligible for federal work-study programs, student loans, and state-funded financial aid. They would not be eligible to receive Pell Grants or certain other federal financial aid grants, nor would they be permitted to travel abroad for lengthy periods of time.⁶

Who Can Qualify for Conditional Permanent Resident Status?

Under the Dream Act, undocumented students can have their immigration status adjusted to conditional permanent resident status if they meet the following criteria:

1. Students must have immigrated to the United States prior to reaching sixteen years of age and at least five years before the passage of the act.
2. Students must be of good moral character (e.g., a student convicted of a crime would not qualify).
3. At the time of submitting their applications, students must be admitted to an institution of higher education in the United States, must have graduated from high school, or must have received a General Education Diploma (GED) in the United States.

Qualifying for Lawful Permanent Resident Status

Regular lawful permanent resident status will be granted at the end of the conditional period of six years if immigrants have demonstrated good moral character and have completed at least one of the following criteria:

1. Students must graduate from a college or university in the United States or have completed at least two years of study toward a bachelor's or higher degree.
2. Students must have served in the armed forces for at least two years and, if discharged, have received an honorable discharge.

Previous versions of the Dream Act included a third option of completing 910 hours of community service.⁷ That option has been omitted from the most recent drafts of the bill.

Why Is the Federal Dream Act Necessary?

Under current law, undocumented students who have earned degrees from the nation's top universities are unable to use those degrees or the skills they learned to find legal employment. For example, an undocumented student who has studied for eight years to receive an MD cannot legally practice medicine; an undocumented student who has earned a JD is not allowed to take the bar exam; an undocumented student with a PhD cannot teach at a U.S. university. Senator Dianne Feinstein stressed the necessity of the Dream Act stating that it "offers bright and highly motivated students a real incentive to become responsible and valued members of our society. Every year 50,000 undocumented children graduate from our nation's high schools or receive the equivalent of a secondary degree. From there they can take one of two paths: they can look at the hopelessness of their situation and get involved in crime, even join street gangs; or they can continue their education, find a good job, and give back something to the United States."⁸

Senate Majority Leader Harry Reid reiterated Senator Feinstein's sentiments after the most recent version of the federal Dream Act (S. 2205) failed to gain the sixty votes needed to pass the legislation: "What a waste it is to make it more difficult for children to go to college or get jobs, when they could be making meaningful contributions to their communities and to our country."⁹

1. National Immigration Law Center, "DREAM Act: Basic Information," October 2007. Available at http://www.nilc.org/immlawpolicy/DREAM/dream_basic_info_0406.pdf.
2. Ibid.
3. National Immigration Law Center, "DREAM Act Summary," April 2006, 1 Available at http://www.nilc.org/immlawpolicy/DREAM/dream_act_06_summary_2006-04.pdf.
4. Paz M. Oliverrez et al, eds., "The College and Financial Aid Guide for: AB540 Undocumented Immigrant Students," Center for Higher Education Policy Analysis, University of Southern California, October 2006, 16. Available at http://www.fao.ucla.edu/Forms/pdfs/07_08_ab540students.pdf.
5. National Immigration Law Center, "DREAM Act: Basic Information." See also Paz M. Oliverrez.
6. National Immigration Law Center, "DREAM Act Summary," 2.
7. National Immigration Law Center, "DREAM Act Reintroduced in Senate," *Immigrants' Rights Update*, 17, no. 5 (2003). Available at <http://www.nilc.org/immlawpolicy/DREAM/Dream001.htm>.
8. "Senator Feinstein Co-Sponsors 'The Dream Act.'" Available at U.S. Senator Dianne Feinstein web site, <http://feinstein.senate.gov/03Releases/r-dreamact.htm>. For more information on the positive benefits of the Dream Act, see National Immigration Law Center, "The Economic Benefits of the DREAM Act and the Student Adjustment Act," February 2005. Available at http://www.nilc.org/immlawpolicy/DREAM/Econ_Bens_DREAM&Stdnt_Adjust_0205.pdf.
9. Klaus Marre, "DREAM Act Fails to Clear Cloture Hurdle," *The Hill*, October 24, 2007.



amazing grace

Mariana D. Zamboni

Mariana interviewed Grace Lee for this profile of an academically promising Korean immigrant student who reached a crossroads and was forced to make a life-altering decision about her immigration status. Although this is a real account of an undocumented student's life, a pseudonym has been used to protect the identity of the person profiled.

Grace's kindness drew me to her one day while we were attending the same tutoring session offered by the Academic Advancement Program at UCLA. As our friendship developed, I learned that we share a secret: the secret of feeling invisible due to our immigration status. We both know what it means to be an undocumented immigrant student in one of the most prestigious universities in the United States. This is a glimpse into the life of my friend, an amazing young Korean American college woman.

Grace lived a comfortable life with her parents and two siblings in South Korea. Her mother was a housewife, and her father owned a construction business. Through the collective efforts of additional family members, Grace's family was well-off. She lived a happy and pleasant life until she was eleven years old, when suddenly things started to change.

I remember it was around 1997. Korea didn't have money, so we were going through IMF, where we had to borrow money from the USA. Most businesses were going out of business because [of] bankruptcy, and my dad's company was one of them.

The International Monetary Fund (IMF) helps oversee global financial systems and acts like a bank by offering countries financial and technical assistance. South Korea became one of these countries in need, and Grace's family was just one of many impacted by globalization. The economic instability in South Korea forced her family to seek various ways to survive. Migration became the solution.

Grace's father decided to immigrate to Canada in 1996 because "in Canada you don't need a visa. You can just go." It was the farthest he could travel from Korea without a visa. Despite his fervent desire to work and send money to his family in South Korea, he was unable to find a job for nine months. In addition to the economic uncertainty he was facing, Grace's father also faced the emotional burdens of being apart from his wife and children. Very few Koreans lived in Canada, and he felt very isolated. Because he was having difficulty adjusting, the rest of the Lee family moved to Canada to be reunited with him.

Living in Canada was difficult and as a result, Grace's parents thought about

The talk with her counselor gave Grace hope. **Dreams** that had faded because she lacked a **nine-digit** number were reawakened.

moving again. They believed that Los Angeles would offer them better economic, educational, and social opportunities. To achieve the dream of moving to Los Angeles, Grace, her mother, and her siblings returned to South Korea because they wanted to enter the United States legally. They purchased student visas and moved to Los Angeles.

Unfortunately Grace's father was not able to return to South Korea because he had fled the country illegally after filing for bankruptcy. Grace's father had no option but to enter the United States illegally. He paid a smuggler to drive him from Canada to Los Angeles, while he hid in the trunk of a car for three hours. I thought about how the media bombards us with images of undocumented Latino immigrants being smuggled across the Mexican border, but it is rare to hear of an undocumented Asian immigrant entering the United States in this manner.

Grace's parents believed that living in Koreatown, a district near downtown Los Angeles, would be detrimental for their acquisition of the English language. As a result, they settled in a city in the San Fernando Valley. Grace felt a sense of security and stability as she began her new life in the United States. Little did she know that it was just the beginning of a difficult journey.

Grace was eleven when she moved to Los Angeles in 1998. Regardless of the private tutoring in English that she had received

in South Korea, her knowledge of the language was rudimentary, and she was not able to communicate well. She remembers using an electronic dictionary often. Her English-as-a-second-language (ESL) teacher helped her gain confidence with her English verbal abilities. Grace also counted on her mother's encouragement to pursue higher education.

My mom always told me, "You have to go to college or else you'll end up like your dad and me . . . If you want to have better opportunities, and you want better for your children later on, you need to go to college and get a degree." So I always had that in the back of my mind.

The high school that Grace attended was in a lower-income neighborhood and had few Korean students, which her mother believed would encourage her children to practice English. Grace had high academic potential; she graduated with a 4.23 grade point average and was valedictorian of her class.

I was surprised to learn that Grace was not undocumented during high school. Because she had entered the country on a student visa, she was considered an international student. Although she was not classified as an undocumented immigrant on paper, she felt as if she were living the life of an undocumented immigrant student because of her inability to access benefits given to those with proof of U.S. citizenship—fee waivers, most scholarships, financial aid and many academic

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enrichment programs, and a driver's license. Although Grace had the opportunity to renew her student visa, she chose not to. She gave up her status as an international student visa holder in exchange for being an undocumented immigrant so that she could qualify for in-state tuition under AB 540. This decision was based on the knowledge Grace acquired from her older sister and college friends who were benefiting from the legislation.

Grace was aware that undocumented immigrant students were attending college but during her senior year of high school, she reached a low point in her life. While most of her friends were applying to various universities, she was not, because of financial concerns. Her high school counselor could not understand why the top student in the school was not applying to colleges.

She said, "You cannot give up. I'm going to try to find out all the scholarships I can for you and help you out, but don't give up now." She was the one that encouraged me to still apply—and see what happens later on.

The talk with her counselor gave Grace hope. Dreams that had faded because she lacked a nine-digit number were reawakened. As I listened to her story, I felt and embraced her agony. I was inspired to look at both our lives and to acknowledge how, in spite of coming from different places, growing up in different environments, and having different customs and languages, we shared something special—a very unique hope.



Grace as a child. Courtesy of Grace Lee.

We empathized with each other because we were engaged in the same struggle.

Grace had high hopes of attending UC Berkeley, but she could not afford the tuition and living expenses. Instead she chose UCLA so that she could live at home, and her parents could help with expenses. She commutes up to four hours every day. According to her, commuting has affected her social life. Grace has not met any other undocumented Asian students at UCLA, but she assures me that "there are plenty." I asked about the barriers she has encountered as an undocumented student.

Most of my friends are U.S. citizens. They have grants, financial aid . . . They don't have to pay for tuition . . . Some of my other friends are so rich, they say, "How much is tuition? I don't even know. My parents pay

Grace feels that her **immigration** status has led her to **establish** an important life goal: **helping** others.

for it." And whenever I hear that comment, it just hurts so much. They don't have to do anything . . . and I have to work crazy hours [to] pay for tuition, and study at the same time.

I understood, and we cried together. Yet we saw our hope grow stronger, united in one purpose. Above all the challenges, fears, and tears, Grace has been able to persist and hopes to graduate in 2008. She wants to pursue graduate studies in the field of education. Grace hopes that everything will be resolved with her immigration paperwork so she can "work for high school students and help any undocumented student or any minority student that needs my help." Although being an undocumented immigrant student has been a hardship, Grace feels that her immigration status has led her to establish an important life goal: helping others. In her own words, if she had not been undocumented, she would be "so much different."

I would be easygoing, not knowing what to do with my life. I don't know what I would be doing . . . wasting my time going

clubbing, drinking, wasting money. But because I am [undocumented], I have my goals and my dream that I want to help others.

Although her parents feel pain every time they see her struggle, she comforts them by saying that she does not regret anything and that she has "learned so much." Someday, she says, "all struggles will be paid off."

The lives of students like Grace—the 65,000 undocumented students who graduate from high schools annually nationwide—will change radically if the Dream Act is signed into law. The Dream Act would provide a path to citizenship for undocumented students like Grace. If the Dream Act is enacted, she and thousands of other students will not only feel visible but also be able to contribute economically by working in their respective fields. Grace's long and unique journey has shown me that it's possible to see strength in weakness and that humans have an incredible ability to cope. She is truly an amazing Grace.

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Erika Perez

Erika interviewed and profiled Mario Escobar. Although Mario's childhood was filled with tragedy, his resilience has led to success as an artist, a student, and an activist in the United States.

Mario Escobar was born on January 19, 1978, in El Salvador. When he was four years old, his mother left him to move to the United States. Mario's childhood was deeply affected by the social upheaval that was taking place in his hometown. In the 1980s, the government of El Salvador was at war with a guerrilla group of communists and leftists known as the Farabundo Marti National Liberation Front. The presence of slaughtered, sometimes headless bodies lying on the street was common in El Salvador.

One day as Mario and his father walked to the fishermen's union, they passed a crowd of people standing next to a military truck. As they walked over to see what was happening, Mario's father, Angel Ebaristo Escobar, grabbed his son and placed his little head against his chest as tears began to fall from his cheeks. Lying on the floor were Mario's two cousins and his grandmother, who had been brutally killed. "You become numb," were the words Mario used to describe his experience with death. "That's the only word I can think of." Mario described this graphic scene as one that he internalized: "Growing up was very difficult as a kid, having to witness

fierce combat, the gruesome atrocities . . . It was so ugly that I will tell you this much: death became something normal. You would look at a dead body and . . . pretty much, it was normal."

When Mario turned eight, he was hit with the news that his father had been killed. It was a horrible death, by lethal injection. At the young age of eleven, Mario ran away from home and picked up a weapon. Having studied Marxist theory, he decided to join the revolution and fight with the people who were facing the social injustices in his country. The tragedy continued: Mario was soon kidnapped. As soon as Mario's mother heard about his kidnapping, she returned to El Salvador and discovered that he had been released. She brought Mario back with her to the United States, only to return him a year later to El Salvador while she settled in the United States.

In 1993 at the age of fifteen, Mario decided to head to the United States on his own, traveling by train. During the trip, he was beaten several times and barely escaped being raped. After arriving in the United States, he began working as a gardener

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and enrolled himself at Jefferson High School. At that time, the campaign to pass Proposition 187 was underway. The unfairness of the measure, which was designed to deny education, medical services, and other social services to anyone who was undocumented, impassioned Mario. His childhood experiences empowered him to organize many of the high school walk-outs protesting against the passage of the proposition. He had moved, he said, from "one civil war to another, only this time without the bullets."

Mario's experiences led him to become an activist and an agent of positive social change. He educated himself about social injustice and was inspired to get involved with his community. Soon after the passage of AB 540, Mario enrolled in a community college and then transferred to UCLA, where he took on a double major in literature and Spanish. The transition to a four-year college was not easy. Mario had become a father while in community college, and he was burdened with paying tuition out of his pocket because his legal status made him ineligible for

When people think of academics, they generally picture books and lecture halls. My understanding of academics goes beyond the lecture halls. It involves what we usually read in the books—real-life experiences. I was born in El Salvador during the early period of the Salvadoran civil war; thus, I can say that my academic experience began at the age of five when I witnessed my grandmother's limbs smeared on the pavement. Next to her were my two cousins and two other victims unknown to me. At six, my twenty-year-old mother had fled the country for fear of persecution. At nine, my father had been killed for his involvement in the civil war. At eleven, I held in my hands an M-16 and was told to shoot anything that interferes with the struggle. At twelve, I was kidnapped and held captive for eleven months. In 1993 I traveled by myself across Guatemala and Mexico so that I could be with my mother. While traveling through Mexico, I saw how people risk their lives just to get to the USA. I remember seeing an old man lose his legs for trying to catch a free ride on the cargo trains. In 1993 I arrived in the United States, adopted a new culture, and learned English in one year. I enrolled in Jefferson High School in South Central Los Angeles, which was another battle zone. Witnessing shootings among gangs in 1993, I felt I was still living through a civil war. In 1996 my mother's lack of understanding and family financial obligations forced me to drop out of high school. In 1998 I decided to attend Los Angeles Trade Tech Community College but unfortunately as an undocumented student, it was hard to come up with the money to pay for my tuition, which forced me to drop out. However, I never gave up. In 2001 I returned to LA Trade Tech. In 2003 I earned my AA in science and liberal arts. That same year, I earned my GED. In 2003 I applied to the UC system and was accepted by UCLA, Cal Berkeley, and UC Riverside. It is 2007, and I am graduating with departmental honors with a dual degree in literature and Chicano studies. I will be starting my master's this fall at ASU. Although this may be seen as the end of a struggle, I can only say that the struggle does not end when one earns a degree. On the contrary, it is merely the beginning of an even bigger struggle.

Spoken word. By Mario Escobar.

financial aid and the majority of scholarships. Mario said that his therapy during this time was his pen. He identified himself as a poet and said that writing is like "erasing the bruises."

In his art and his way of life, Mario evidences a deep concern for the well-being of the community. He questions the way the system is set up, and he believes in equality for all people. He shows his love for his country by gaining knowledge and becoming an active citizen. He believes that salaries and educational opportunities should be more equitable for those who work hard and contribute to the economy. He believes that people have the power to make a difference if they get involved.

Mario said that Americans need to open the doors to higher education. Everyone has the right to an education, he added, and when that right is denied, the state contradicts its claim of democracy. Why must undocumented students go through the educational process only to be denied the opportunity to participate in the workforce after they graduate? Some change has to occur.

Mario believes that there are two types of democratic freedom. One is mental freedom. He argued that "when you don't have the information to know your surroundings, you're mentally restrained." The second is physical freedom—when you are allowed to go where you please. Mario noted that one can lead to the other: without knowing what to do mentally, you become physically restrained; you don't know where to go. He believes that although education does not grant you all the freedom you need, it does grant you the freedom that you need to survive in this world.

When asked for his opinion on the immigration debate, Mario explained that we need to give legal status to the immigrants that are in this country and to improve

conditions in the countries where they come from. After all, as his story illustrates, it is the economic and political environments that lead people to leave their countries. He added that we need more politicians like Senator Gilbert Cedillo, who truly care about the well-being of people, especially people who are undocumented and in need of a political voice. He believes that there are a lot of "cookie cutters" in the world of politics—those who care only about climbing up the political ladder and forget about the people whose lives are affected by policy and laws.

Mario said that those who have experienced struggles similar to his should ask themselves some philosophical questions: "What is the purpose of life? What is it that you, as an individual, aim at? . . . Do you want to do something just because society tells you what to do? What is it that you aim at?"

Mario's aim is social justice and equality. He also has a personal theory about responsibility. He claims that there are



Mario with Senator Gilbert Cedillo. Courtesy of IDEAS at UCLA.

two types of responsibility: one that allows you to fulfill duties and be responsible for the trash. The other is that you ought to take responsible measures for your own actions, to avoid a harm with responsibilities that perpetuates the cycle of harmful patterns. Who is responsible for the harm, as well as our responsibility to weigh the pros and cons of the proposition. Mario states that to reach a utopian society is that we have to create a utopia, something out of it."

Mario has provided a way for undocumented students to be published one way. He has a company with voices "that need to be heard that we are living in a warfare." We have stated, and we have said that it is linked to the

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two types of responsibility. One requires you to fulfill duties that you are told to be responsible for, such as taking out the trash. The other requires you to do things you ought to do. For instance, being responsible means being accountable for your own actions and not responding to a harm with retribution, which perpetuates the cycle. We must not continue harmful patterns, he noted. Each of us is responsible for thinking about others as well as ourselves. A person needs to weigh the pros and cons of every situation. Mario stated that his goal is not to reach a utopian society; rather, what matters is that we *try* to reach a utopian society: "In the trajectory of wanting to reach utopia, something good is going to come out of it."

Mario has proven to be a warrior against adversity, and he continues to lead the way for undocumented students. He has published one book and has another on the way. He has started his own publishing company because there are too many voices "that need to be heard." He believes that we are living in a time of "information warfare." We need more oral histories, he stated, and we must develop new theories. He said that the struggle for equality is linked to the spread of new information.

His role is to contribute information by publishing his writing. He would like his publishing company to grow, not to gain a lot of money but to disseminate information. He would like to publish children's books that touch on immigrant issues such as AB 540. The need to educate others is his priority.

On May 1, 2007, during the rally in support of undocumented immigrants at MacArthur Park, Mario was struck, both figuratively and literally, by police violence. He filmed the incident and expressed frustration with the police officers who shot rubber bullets at the marchers: "I thought they were real bullets. They sounded like real bullets. I felt a hot sting on my upper chest . . . I saw a guy in front of me fall to the ground, and he screamed."

Mario's perseverance ultimately carried him to a major milestone. In the spring of 2007, after years of deportation hearings and just weeks before he graduated from UCLA, Mario was finally granted political asylum by the United States government. Mario is now attending graduate school at Arizona State University on a full scholarship. He is determined to influence coming generations about social justice and equality through his art.



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